

PRE-BAR REVIEW NOTES IN LEGAL AND JUDICIAL ETHICS

PRACTICE OF LAW is the rendition of legal service or performance of acts or the application of law, legal principles, and judgment, in or out of court, with regard to the circumstances or objectives of a person or a cause, and pursuant to a lawyer-client relationship or other engagement governed by the Code of Professional Responsibility and Accountability for lawyers. It includes employment in the public service or private sector and requires membership in the Philippine bar as qualification. (*Sec.1, Canon III, CPRA*)

ADMISSION TO THE PRACTICE OF LAW

The Supreme Court shall have the power to promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the integrated bar, and legal assistance to the under-privileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court. (*Constitution of the Philippines, Art. VIII, sec. 5(5)*)

REQUIREMENTS FOR ADMISSION TO THE BAR:

1. Must be a citizen of the Philippines;
2. Must be a resident of the Philippines;
3. At least 21 years of age;
4. Must possess good moral character;
5. Must not have been charged of any crime involving moral turpitude;
6. Must have complied with the academic requirements.

NOTE: Bar Matter 1153 dated 9 March 2010 allows Filipino citizens who graduated from a foreign law school to take the Philippine Bar Examinations.

THE SUPERVISION AND REGULATION OF LEGAL EDUCATION IS AN EXECUTIVE FUNCTION. Court's exclusive rule-making power covers the practice of law and not the study of law. The definition of the practice of law, no matter how broad, cannot be further enlarged as to cover the study of law.

It is a reality that the Rules of Court, in prescribing the qualifications in order to take the bar examinations, had placed a considerable constraint on the courses offered by law schools. Adjustments in the curriculum, for instance, is a compromise which law schools apparently are willing to take in order to elevate its chances of graduating future bar examinees. It is in this regard that the relationship between legal education and admissions to the bar becomes unmistakable. This, however, does not mean that the Court has or exercises jurisdiction over legal education. Compliance by law schools with the prescribed core courses is but a recognition of the Court's exclusive jurisdiction over admissions to the practice of law - that no person shall be allowed to take the bar examinations and thereafter, be admitted to the Philippine Bar without having taken and completed the required core courses. (*Pimentel et. Al vs. Legal Education Board, 10 September 2019*)

CONTINUING REQUIREMENTS FOR THE PRACTICE OF LAW:

1. Payment of Professional Tax Receipt

2. Good and Regular Standing of Membership in the Integrated Bar of the Philippines (IBP)

- **Mandatory Membership in the IBP is NOT violative of Freedom of Association.** Compulsory membership to the IBP does not violate a lawyer's freedom of association. Integration does not make a lawyer a member of any group of which he is already a member. He became a member of the bar when he passed the Bar Examinations. All that integration actually does is to provide an official national organization for the well-defined but unorganized and incohesive group of which every lawyer is already a member (*In Re: Edillon, A.M. No. 1928, August 3, 1978*)

3. Payment of IBP Dues

- The compulsion to which he is subjected is the payment of annual dues. For the court to prescribe dues to be paid does not mean that the Court levies a tax. A membership fee in the IBP is an exaction for regulation, while the purpose of a tax is revenue (*Report of the Commission on Bar Integration, In the Matter of the Petition for the Integration of the Bar of the Philippines, A.C. 526, 9 January 1973*)

4. Compliance with the Mandatory Continuing Legal Education (MCLE)

- Continuing legal education is required of members of the Integrated Bar of the Philippines (IBP) to ensure that throughout their career, they keep abreast with law and jurisprudence, maintain the ethics of the profession and enhance the standards of the practice of law.
- Members of the IBP not exempt shall complete, every three (3) years, at least thirty-six (36) hours of continuing legal education activities approved by the MCLE Committee.

5. Possession of Good Moral Character

- Possession of good moral character is not only required of those who aspire to be admitted in the practice of law. It is a continuing requirement in order for a lawyer to maintain his or her membership in the bar in good standing. (*Buenantura vs. Atty. Gille, A.C. No. 7446, 09 December 2020*)

6. Legal Aid

- The Supreme Court issued A.M. No. 22-11-01-SC or the Rules on Unified Legal Aid Service (ULAS), effective January 1, 2025. The ULAS requires covered lawyers to render sixty (60) hours of *Pro Bono* Legal Aid Services every compliance period. A compliance period consists of thirty-six (36) months.
- *Covered Lawyers are those: (a) whose membership status with the IBP has not been terminated; (b) who are not retired in accordance with the IBP By-Laws; and (c) who are not excluded.*
- Excluded from the ULAS are: (a) those in government service and incumbent elective officials absolutely prohibited from practicing law outside their public employment; (b) those employed in the Public Attorney's Office; (c) lawyers serving as Shari'ah counselors-at-law under the Shari'ah Public Assistance Office; (d) those whose request for authority to render *Pro Bono* Legal Aid Services from their government agency is denied by the duly authorized officer of the agency; (e) those who have been in the practice of law for at least 35 years or who are at least 60 years old, reckoned from the last year of the relevant Compliance Period; (f) those who suffer physical disabilities or attributes, mental, or other circumstances that render compliance with the *Rules* unreasonably difficult or impossible; and (g) new lawyers who are admitted to the Bar after the effectivity of this *Rules*, for the Compliance Period at the time of their admission. These persons are required to obtain a Certificate of Exclusion with the ULAS Board before the end of the Compliance Period.

7. Citizenship Requirement

- The practice of all professions in the Philippines shall be limited to Filipino citizens, save in cases prescribed by law. (*Art. XII, Sec. 14, Philippine Constitution*)

- **A Filipino lawyer who becomes a citizen of another country is deemed never to have lost his Philippine citizenship if he reacquires it in accordance with RA 9225.** Although he is also deemed never to have terminated his membership in the Philippine bar, no automatic right to resume law practice accrues. *(In Re: Dacanay, 17 December 2007)*

REVISED LAW STUDENT PRACTICE RULE

No law student shall be permitted to engage in any of the activities under the Clinical Legal Education Program of a law school unless the law student has applied for and secured the following certifications:

- (a) Level 1 certification, for law students who have successfully completed their first-year law courses; and/ or
- (b) Level 2 certification, for law students currently enrolled for the second semester of their third-year law courses: Provided however, where a student fails to complete all their third-year law courses, the Level 2 certification shall be deemed automatically revoked. The certification issued shall be valid until the student has completed the required number of courses in the clinical legal education program to complete the law degree, unless sooner revoked for grounds stated herein. *(Section 3, A.M. No. 19-03-24-SC)*

APPEARANCE OF NON-LAWYERS

MTC	RTC	NLRC	CADASTRAL COURT	OTHER AGENCY/ TRIBUNAL
CIVIL CASES: In the court of a justice of the peace, a party may conduct his litigation in person, with the aid of an agent or friend appointed by him for the purpose, or with the aid of an attorney. In any other court, a party may conduct his litigation personally or by aid of an attorney, and his appearance must be either personal or by a duly authorized member of the bar. (Rule 138, sec. 34, ROC) CRIMINAL CASES: In grave and less grave offenses when it sufficiently appears before the Court that the accused can properly protect his rights without the assistance of counsel. (Sec. 115, ROC). But in localities where such members of the bar are not available, the court may appoint any person, resident of the province and of good repute for probity and ability to defend the accused. (rule 116. Sec. 7, ROC)	CIVIL CASES: In the court of a justice of the peace, a party may conduct his litigation in person, with the aid of an agent or friend appointed by him for the purpose, or with the aid of an attorney. In any other court, a party may conduct his litigation personally or by aid of an attorney, and his appearance must be either personal or by a duly authorized member of the bar. (Rule 138, sec. 34, ROC) CRIMINAL CASES: In grave and less grave offenses when it sufficiently appears before the Court that the accused can properly protect his rights without the assistance of counsel. (Rule 115, ROC).	A non-lawyer may appear before the NLRC or the Labor Arbiter: 1. Represent himself as a party to the case; 2. Represent member/s of a Legitimate Labor Organization; 3. A duly accredited member or the legal aid office; 4. Owner/ President of a Corporation which is a party to the case (NLRC Rules of Procedure)	A non-lawyer may represent a claimant in a cadastral court.	A non-lawyer may represent a party in DARAB.

PROHIBITED PROCEEDINGS FOR LAWYERS

KATARUNGANG PAMBARANGAY	SMALL CLAIMS	IPRA LAW
During the pre-trial conference under the Rules of Court, lawyers are prohibited from appearing for the parties. (Sec. 415, LGC) XPN: When the lawyer him/herself is a party.	No lawyer shall appear in behalf of or represent a party at the hearing, unless the attorney is the plaintiff or defendant. (Sec. 17, A.M. No. 08-8-7-SC)	GR: Lawyers are prohibited to appear as counsel for any party. XPN: The lawyer is appearing in his/her capacity as a member of the Council of Elders or due to his/her obligation as a member of the Indigenous People's community. (R.A. 8371)

PUBLIC OFFICIALS WHO CANNOT ENGAGE IN THE PRIVATE PRACTICE OF LAW

- President, Vice-President, members of the cabinet, their deputies and assistants (Art. VIII Sec. 15, 1987 Constitution).
- Members of the Constitutional Commission (Art IX-A, Sec. 2, 1987 Constitution)
- Ombudsman and his deputies (Art. IX, Sec. 8 (2nd par), 1987 Constitution)
- Judges and other officials as employees of the Supreme Court (Rule 148, Sec. 35, RRC).
- Governors, city and municipal mayors (R.A. No. 7160, Sec. 90).
- Those prohibited by special law

PUBLIC OFFICIALS NOT ABSOLUTELY PROHIBITED TO ENGAGE IN THE PRIVATE PRACTICE OF LAW

- No Senator as member of the House of Representative may personally appear as counsel before any court of justice as before the Electoral Tribunals, as quasi-judicial and other administration bodies (*Art. VI, Sec. 14, 1987 Constitution*).
- Under the Local Government Code (*RA 7160, Sec. 91*) Sanggunian members may practice their professions provided that if they are members of the Bar, they shall not: appear as counsel before any court in any civil case wherein a local government unit or any office, agency, or instrumentality of the government is the adverse party;
- Retired justice or judge receiving pension from the government, cannot act as counsel in any civil case in which the Government, or any of its subdivision or agencies is the adverse party or in a criminal case wherein an officer or employee of the Government is accused of an offense in relation to his office. (R.A. 910, Sec. 5)

REVISED LAWYER'S OATH

I, (name), do solemnly swear that I accept the honor, privilege, duty, and responsibility of practicing law in the Philippines as an Officer of the Court in the interest of our people. I declare fealty to the Constitution of the Republic of Philippines. In doing so, I shall work towards promoting the rule of law and a regime of truth, justice, freedom, love, equality, and peace. I shall conscientiously and courageously work for justice, as well as safeguard the rights and meaningful freedoms of all persons, identities and communities. I shall ensure greater and equitable access to justice. I shall do no falsehood nor shall I pervert the law to unjustly favor nor prejudice anyone. I shall faithfully discharge these duties and responsibilities to the best of my ability, with integrity, and utmost civility. I impose all these upon myself without mental reservation nor purpose of evasion. So help me, God.

CODE OF PROFESSIONAL RESPONSIBILITY AND ACCOUNTABILITY

A.M. No. 22-09-01-SC

GENERAL PROVISIONS

SECTION 1. Retroactive effect. — This Code shall be applied to all cases filed after its effectivity on and also retroactively to all pending cases, except to the extent that in the opinion of the Court, its application would not be feasible or would work injustice, in which case the procedure under which the cases were filed shall govern.

SECTION 2. Repealing clause. — Any resolution, circular, bar matter, or administrative order issued by, or principles established in the decisions of the Supreme Court inconsistent with this Code is deemed modified or repealed.

NOTE: Section 1 of the CPRA provides that the Code applies to all cases filed after its effectivity, as well as retroactively to all pending cases, except in situations where its application would be impractical or unjust. In such cases, the procedure under which the cases were filed will apply.

CANON I **INDEPENDENCE**

The independence of a lawyer in the discharge of professional duties without any improper influence, restriction, pressure, or interference, direct or indirect, ensures effective legal representation and is ultimately imperative for the rule of law.

Section 1. Independent, accessible, efficient and effective legal service. — A lawyer shall make legal services accessible in an efficient and effective manner. In performing this duty, a lawyer shall maintain independence, act with integrity, and at all times ensure the efficient and effective delivery of justice.

NOTE: This is based on Canon 2 of the old CPR which provides, "A lawyer shall make his legal services available in an efficient and convenient manner compatible with the independence, integrity and effectiveness of the profession."

Section 2. Merit-based practice. — A lawyer shall rely solely on the merits of a cause and not exert, or give the appearance of, any influence on, nor undermine the authority of, the court, tribunal or other government agency, or its proceedings.

A lawyer was found guilty of violating this provision for boasting to complainant that he has friends in the LRA, the Office of the Registry of Deeds, the Assessor's Office of Quezon City, and the LMB, "who will definitely offer a hand [in] this transaction." (*Reyes vs. Atty. Sebrío*, 02 April 2025)

Section 3. Freedom from improper considerations and external influences. — A lawyer shall not, in advocating a client's cause, be influenced by dishonest or immoral considerations, external influences, or pressure.

The lawyers were suspended from the practice of law for three years because they represented to their client that they could find a "friendly" court, judge, and public prosecutor to ensure a favorable ruling in the client's annulment case. Their representation undermined and/or denigrated the integrity of the national prosecution service and the courts, in violation of the Code of Professional Responsibility. (*Dongga-as vs. Cruz-Angeles*, A.C. No. 11113, August 9, 2016)

Section 4. *Non-interference by a lawyer.* — Unless authorized by law or a court, a lawyer shall not assist or cause a branch, agency, office or officer of the government to interfere in any matter before any court, tribunal, or other government agency.

NOTE: Based on Rule 13.03 of the CPR which provides, "A lawyer shall not brook or invite interference by another branch or agency of the government in the normal course of proceedings."

Section 5. *Lawyer's duty and discretion in procedure and strategy.* — A lawyer shall not allow the client to dictate or determine the procedure in handling the case.

Nevertheless, a lawyer shall respect the client's decision to settle or compromise the case after explaining its consequences to the client.

A lawyer shall not neglect a legal matter entrusted to him and his negligence in connection therewith shall render him liable. If only Atty. Noel's position of not filing an appeal because it would only be frivolous has been properly communicated to the complainant at the earliest possible time so that the complainant would be able to seek the services of another lawyer for help, it would have been commendable. A lawyer's duty is not to his client but to the administration of justice; to that end, his client's success is wholly subordinate; and his conduct ought to and must always be scrupulously observant of law and ethics." But as it was, Atty. Noel's negligence as afore-discussed robbed the complainant of the opportunity to at least look for another lawyer for professional help and file an appeal, after all, it is the client who finally decides whether to appeal or not an adverse decision. (*Roldan v. Panganiban, 14 December 2004*)

Although a lawyer has complete discretion on what legal strategy to employ in a case entrusted to him, he must present every remedy or defense within the authority of law to support his client's interest. When a lawyer agrees to take up a client's cause, he covenants that he will exercise due diligence in protecting the latter's rights. (*Baens vs. Atty. Sempio, 09 June 2014*)

Being the counsel on record, Atty. Herrera is expected to be knowledgeable about substantive law and procedural rules and should not merely accede to the instructions of his client. (*Mangubat vs. Atty. Herrera, 05 April 2022*)

CANON II **PROPRIETY**

A lawyer shall, at all times, act with propriety and maintain the appearance of propriety in personal and professional dealings, observe honesty, respect and courtesy, and uphold the dignity of the legal profession consistent with the highest standards of ethical behavior.

Section 1. *Proper conduct.* — A lawyer shall not engage in unlawful, dishonest, immoral, or deceitful conduct.

Any act or omission that is contrary to, prohibited or unauthorized by, in defiance of, disobedient to, or disregards the law is "unlawful." "Unlawful" conduct does not necessarily imply the element of criminality although the concept is broad enough to include such element.

To be "dishonest" means the disposition to lie, cheat, deceive, defraud or betray; be untrustworthy; lacking in integrity, honesty, probity, integrity in principle, fairness and straightforwardness. On the other hand, conduct that is "deceitful" means as follows:

Having the proclivity for fraudulent and deceptive misrepresentation, artifice or device that is used upon another who is ignorant of the true facts, to the prejudice and damage of the party imposed upon. In order to be deceitful, the person must either have knowledge of the falsity or acted in reckless and conscious ignorance thereof, especially if the parties are not on equal terms, and was done with the intent that the

aggrieved party act thereon, and the latter indeed acted in reliance of the false statement or deed in the manner contemplated to his injury. (*Manalang vs. Atty. Buendia, A.C. No. 12079, 10 November 2020*)

Immoral conduct, or immorality, is that which is so willful, flagrant, or shameless as to show indifference to the opinion of good and respectable members of the community. As a basis of disciplinary action, such immoral conduct, or immorality must be so corrupt as to virtually constitute a criminal act or so unprincipled as to be reprehensible to a high degree or committed under such scandalous or revolting circumstances as to shock the common sense of decency. (*Ceniza vs. Atty. Ceniza, A.C. No. 8335, 10 April 2019*)

Section 2. Dignified conduct. — A lawyer shall respect the law, the courts, tribunals, and other government agencies, their officials, employees, and processes, and act with courtesy, civility, fairness, and candor towards fellow members of the bar.

A lawyer shall not engage in conduct that adversely reflects on one's fitness to practice law, nor behave in a scandalous manner, whether in public or private life, to the discredit of the legal profession.

NOTE: Every lawyer is expected to be honorable and reliable at all times. This must be so, because any lawyer who cannot abide by the laws in his private life cannot be expected to do so in his professional dealings. (*Ceniza vs. Ceniza, A.C. No. 8335*)

Case law instructs that "[l]awyers should treat their opposing counsels and other lawyers with courtesy, dignity[,] and civility. A great part of their comfort, as well as of their success at the bar, depends upon their relations with their professional brethren. Since they deal constantly with each other, they must treat one another with trust and respect. Any undue ill feeling between clients should not influence counsels in their conduct and demeanor toward each other. Mutual bickering, unjustified recriminations[,] and offensive behavior among lawyers not only detract from the dignity of the legal profession, but also constitute highly unprofessional conduct subject to disciplinary action." (*Atty. Nava vs. Atty. Artuz, 18 February 2020*)

Section 4. Use of dignified, gender-fair, and child- and culturally-sensitive language. — A lawyer shall use only dignified, gender-fair, child- and culturally-sensitive language in all personal and professional dealings.

To this end, a lawyer shall not use language which is abusive, intemperate, offensive or otherwise improper, oral or written, and whether made through traditional or electronic means, including all forms or types of mass or social media.

Though a lawyer's language may be forceful and emphatic, it should always be dignified and respectful, befitting the dignity of the legal profession. The use of intemperate language and unkind ascriptions has no place in the dignity of the judicial forum. (*Barandon, Jr. v. Ferrer, Sr., 630 Phil. 524, 530*)

Section 8. Prohibition against misleading the court, tribunal, or other government agency. — A lawyer shall not misquote, misrepresent, or mislead the court as to the existence or the contents of any document, argument, evidence, law, or other legal authority, or pass off as one's own the ideas or words of another, or assert as a fact that which has not been proven.

NOTE: A mere typographical error in the citation of an authority is not contemptuous. (*Del Rosario vs. Chingcuangco, 17 December 1966*)

Section 11. False representations or statements; duty to correct. — A lawyer shall not make false representations or statements. A lawyer shall be liable for any material damage caused by such false representations or statements.

A lawyer shall not, in demand letters or other similar correspondence, make false representations or statements, or impute civil, criminal, or administrative liability, without factual or legal basis.

A lawyer shall correct false or inaccurate statements and information made in relation to an application for admission to the bar, any pleading, or any other document required by or submitted to the court, tribunal or agency, as soon as its falsity or inaccuracy is discovered or made known to him or her.

Here, respondent exhibited his dishonesty and utter lack of moral fitness to be a member of the Bar when he assumed the name, identity, and school records of his own brother and dragged the latter into controversies which eventually caused him to fear for his safety and to resign from PSC where he had been working for years. Good moral character is essential in those who would be lawyers. This is imperative in the nature of the office of a lawyer, the trust relation which exists between him and his client, as well as between him and the court. Finally, respondent made a mockery of the legal profession by pretending to have the necessary qualifications to be a lawyer. He also tarnished the image of lawyers with his alleged unscrupulous activities, which resulted in the filing of several criminal cases against him. Certainly, respondent and his acts do not have a place in the legal profession where one of the primary duties of its members is to uphold its integrity and dignity. (*Caronan vs. Caronan*, 12 July 2016)

Section 12. Duty to report dishonest, deceitful or misleading conduct. — A lawyer shall immediately inform a court, tribunal, or other government agency of any dishonest, deceitful or misleading conduct related to a matter being handled by said lawyer before such court, tribunal, or other government agency.

A lawyer shall also report to the appropriate authority any transaction or unlawful activity that is required to be reported under relevant laws, including the submission of covered and suspicious transactions under regulatory laws, such as those concerning anti-money laundering. When disclosing or reporting the foregoing information to the appropriate court, tribunal, or other government agency, the lawyer shall not be deemed to have violated the lawyer's duty of confidentiality.

Any such information shall be treated with strict confidentiality.

A baseless report shall be subject to civil, criminal, or administrative action.

NOTE: *This duty is not only a moral obligation but also a legal requirement. Failure to report may result to disciplinary action, and/or criminal prosecution.*

Section 17. Non-solicitation and impermissible advertisement. — A lawyer shall not, directly or indirectly, solicit, or appear to solicit, legal business.

A lawyer shall not, directly or indirectly, advertise legal services on any platform or media except with the use of dignified, verifiable, and factual information, including biographical data, contact details, fields of practice, services offered, and the like, so as to allow a potential client to make an informed choice. In no case shall the permissible advertisement be self-laudatory.

A lawyer, law firm, or any of their representatives shall not pay or give any benefit or consideration to any media practitioner, award-giving body, professional organization, or personality, in anticipation of, or in return for, publicity or recognition, to attract legal representation, service, or retainerhip.

A lawyer's best advertisement is a well-merited reputation for professional capacity and fidelity to trust based on his character and conduct. Time and time again, lawyers are reminded that the practice of law is a profession and not a business; lawyers should not advertise their talents as merchants advertise their wares. To allow a lawyer to advertise his talent or skill is to commercialize the practice of law, degrade the profession in the public's estimation and impair its ability to efficiently render that high character of service to which every member of the bar is called. (*Linsangan vs. Atty. Tolentino*, A.C No. 6672)

Lawyers are prohibited from soliciting cases for the purpose of gain, either personally or through paid agents or brokers. Such actuation constitutes malpractice, a ground for disbarment. (*Supra*)

It has been repeatedly stressed that the practice of law is not a business. It is a profession in which duty to public service, not money, is the primary consideration. Lawyering is not primarily meant to be a money-making venture, and law advocacy is not a capital that necessarily yields profits. The gaining of a livelihood

should be a secondary consideration. The duty to public service and to the administration of justice should be the primary consideration of lawyers, who must subordinate their personal interests or what they owe to themselves. The following elements distinguish the legal profession from a business:

1. A duty of public service, of which the emolument is a by-product, and in which one may attain the highest eminence without making much money;
2. A relation as an "officer of the court" to the administration of justice involving thorough sincerity, integrity and reliability;
3. A relation to clients in the highest degree of fiduciary;
4. A relation to colleagues at the bar characterized by candor, fairness, and unwillingness to resort to current business methods of advertising and encroachment on their practice, or dealing directly with their clients. (*Atty. Khan vs. Atty. Simbillo, A.C. No. 5299, 19 August 2003*)

Section 19. Sub-judice rule. — A lawyer shall not use any forum or medium to comment or publicize opinion pertaining to a pending proceeding before any court, tribunal, or other government agency that may:

- a. cause a pre-judgment, or
- b. sway public perception so as to impede, obstruct, or influence the decision of such court, tribunal, or other government agency, or which tends to tarnish the court's or tribunal's integrity, or
- c. impute improper motives against any of its members, or
- d. create a widespread perception of guilt or innocence before a final decision.

The **Sub Judice rule** restricts comments and disclosures pertaining to the judicial proceedings in order to avoid prejudging the issue, influencing the court, or obstructing the administration of justice. The rationale for this rule is for the courts, in the decision of issues of fact and law, to be immune from every extraneous influence; for the case to be decided upon evidence produced in court; and for the determination of such facts be uninfluenced by bias, prejudice or sympathies. In fine, what is sought to be protected is the primary duty of the courts to administer justice in the resolution of cases before them. (*Republic vs. Sereno, G.R. No. 237428*)

Section 20. Disclosure of relationship or connection. — A lawyer shall, at the first available opportunity, formally disclose on record the lawyer's relationship or connection with the presiding officer of any court, tribunal, or other government agency, or any of its personnel, or the lawyer's partners, associates, or clients, that may serve as a ground for mandatory inhibition in any pending proceeding before such court, tribunal, or other government agency.

Section 21. Prohibition against gift-giving and donations. — A lawyer shall not directly or indirectly give gifts, donations, contributions of any value or sort, on any occasion, to any court, tribunal or government agency, or any of its officers and personnel.

Section 23. Instituting multiple cases; forum shopping. — A lawyer shall not knowingly engage or through gross negligence in forum shopping, which offends against the administration of justice, and is a falsehood foisted upon the court, tribunal, or other government agency.

A lawyer shall not institute or advise the client to institute multiple cases to gain leverage in a case, to harass a party, to delay the proceedings, or to increase the cost of litigation.

FORUM SHOPPING exists when, as a result of an adverse decision in one forum, or in anticipation thereof, a party seeks a favorable opinion in another forum through means other than appeal or *certiorari*. There is forum shopping when the elements of *litis pendentia* are present or where a final judgment in one case will amount to *res judicata* in another. They are as follows: (a) identity of parties, or at least such parties

that represent the same interests in both actions; (b) identity of rights or causes of action; and (c) identity of relief sought.

A lawyer owes fidelity to the cause of his client, but not at the expense of truth and the administration of justice. The filing of multiple petitions constitutes abuse of the court's processes and improper conduct that tends to impede, obstruct and degrade the administration of justice and will be punished as contempt of court. Needless to state, the lawyer who files such multiple or repetitious petitions (which obviously delays the execution of a final and executory judgment) subjects himself to disciplinary action for incompetence (for not knowing any better) or for willful violation of his duties as an attorney to act with all good fidelity to the courts, and to maintain only such actions as appear to him to be just and are consistent with truth and honor. (*Mallari vs. GSIS, 10 January 2018*)

Section 24. *Encroaching or interfering in another lawyer's engagement; exception.* — A lawyer shall not, directly or indirectly, encroach upon or interfere in the professional engagement of another lawyer.

This includes a lawyer's attempt to communicate, negotiate, or deal with the person represented by another lawyer on any matter, whether pending or not in any court, tribunal, body, or agency, unless when initiated by the client or with the knowledge of the latter's lawyer.

A lawyer, however, may give proper advice and assistance to anyone seeking relief against perceived unfaithful or neglectful counsel based on the Code.

NOTE: There is no encroachment when a client already dismissed the services of his previous counsel. A client may discharge his attorney at any time with or without cause and thereafter employ another lawyer who may then enter his appearance. Thus, it has been held that a client is free to change his counsel in a pending case and thereafter retain another lawyer to represent him. That manner of changing a lawyer does not need the consent of the lawyer to be dismissed. Nor does it require approval of the court. (*Lim vs. Atty. Villarosa, 15 June 2006*)

RESPONSIBLE USE OF SOCIAL MEDIA

A lawyer shall uphold the dignity of the legal profession in all social media interactions in a manner that enhances the people's confidence in the legal system, as well as promote its responsible use.

Section 36. *Responsible use.* — A lawyer shall have the duty to understand the benefits, risks, and ethical implications associated with the use of social media.

Section 37. *Online posts.* — A lawyer shall ensure that his or her online posts, whether made in a public or restricted privacy setting that still holds an audience, uphold the dignity of the legal profession and shield it from disrepute, as well as maintain respect for the law.

Section 38. *Non-posting of false or unverified statements, disinformation.* — A lawyer shall not knowingly or maliciously post, share, upload or otherwise disseminate false or unverified statements, claims, or commit any other act of disinformation.

Section 39. *Prohibition against fraudulent accounts.* — A lawyer shall not create, maintain or operate accounts in social media to hide his or her identity for the purpose of circumventing the law or the provisions of the CPRA.

Section 40. *Non-disclosure of privileged information through online posts.* — A lawyer shall not reveal, directly or indirectly, in his or her online posts confidential information obtained from a client or in the course of, or emanating from, the representation, except when allowed by law or the CPRA.

Section 41. Duty to safeguard client confidences in social media. — A lawyer, who uses a social media account to communicate with any other person in relation to client confidences and information, shall exert efforts to prevent the inadvertent or unauthorized disclosure or use of, or unauthorized access to, such an account.

Section 42. Prohibition against influence through social media. — A lawyer shall not communicate, whether directly or indirectly, with an officer of any court, tribunal, or other government agency through social media to influence the latter's performance of official duties.

Section 43. Legal information; legal advice. — Pursuant to a lawyer's duty to society and the legal profession, a lawyer may provide general legal information, including in answer to questions asked, at any fora, through traditional or electronic means, in all forms or types of mass or social media.

A lawyer who gives legal advice on a specific set of facts as disclosed by a potential client in such fora or media dispenses Limited Legal Service and shall be bound by all the duties in the CPRA, in relation to such Limited Legal Service.

Section 44. Online posts that could violate conflict of interest. — A lawyer shall exercise prudence in making posts or comments in social media that could violate the provisions on conflict of interest under the CPRA.

Thus, Atty. Gadon cannot exculpate himself by claiming that he "neither published nor posted nor uploaded" the subject video clip onto any social media platform. As a lawyer, it was reasonable to expect that he understood the consequences of recording the video, its benefits, if any, risks, and ethical implications, including the likelihood of it spreading indiscriminately, becoming available to anyone on social media, and the influence that it could have on lawyers and non-lawyers alike, not to mention the children who have been exposed, or have yet to be exposed, to the said video clip. Atty. Gadon failed to take these implications and consequences into account, and in doing so, he likewise failed in upholding the edict to responsibly use social media. (*In Re: Atty. Gadon, A.C. No. 13521*)

While freedom of expression is guaranteed by the Constitution, the lawyer's oath and his duties and responsibilities ultimately serve as a limit thereto. We caution lawyers to be circumspect in their postings online. They are reminded to always practice restraint in their conduct, be it in real life or online. Otherwise, the rule of law may very well be completely circumvented and rendered nugatory by blatantly seeking public trial on social media. (*Lao vs Atty Causing, A.C. No 13453*)

CANON III **FIDELITY**

Fidelity pertains to a lawyer's duty to uphold the Constitution and the laws of the land, to assist in the administration of justice as an officer of the court, and to advance or defend a client's cause, with full devotion, genuine interest, and zeal in the pursuit of truth and justice.

Section 2. The responsible and accountable lawyer. — A lawyer shall uphold the constitution, obey the laws of the land, promote respect for laws and legal processes, safeguard human rights, and at all times advance the honor and integrity of the legal profession.

As an officer of the court, a lawyer shall uphold the rule of law and conscientiously assist in the speedy and efficient administration of justice.

As an advocate, a lawyer shall represent the client with fidelity and zeal within the bounds of the law and the CPRA.

For lawyers to resort to unscrupulous practices for the protection of the supposed rights of their clients defeats one of the purposes of the state - the administration of justice. While lawyers owe their entire devotion to the interest of their clients and zeal in the defense of their client's right, they should not forget that they are, first and foremost, officers of the court, bound to exert every effort to assist in the speedy and efficient administration of justice. (*Tolentino vs. COMELEC*, 26 January 2016)

Section 3. Lawyer-client relationship. — A lawyer-client relationship is of the highest fiduciary character. As a trust relation, it is essential that the engagement is founded on the confidence reposed by the client on the lawyer. Therefore, a lawyer-client relationship shall arise when the client consciously, voluntarily and in good faith vests a lawyer with the client's confidence for the purpose of rendering legal services such as providing legal advice or representation, and the lawyer, whether expressly or impliedly, agrees to render such services.

Public confidence in law and lawyers may be eroded by the irresponsible and improper conduct of a member of the bar.¹ Thus, a lawyer should determine his conduct by acting in a manner that would promote public confidence in the integrity of the legal profession. Members of the Bar are expected to always live up to the standards embodied in the Code of Professional Responsibility as the relationship between an attorney and his client is highly fiduciary in nature and demands utmost fidelity and good faith. (*Nakpil v. Valdes*, A.C. No. 2040, March 4, 1998)

The moment the lawyer-client relationship commences, the relationship of the lawyer and the client becomes imbued with trust and confidence. Thereupon, the lawyer is bound to serve his or her clients with full competence, and to attend to their cause with utmost diligence, care and devotion. In accordance with this highly fiduciary relationship, the client expects the lawyer to be always mindful of the former's cause and to be diligent in handling his or her legal affairs. (*Katipunan vs. Atty. Carrera*, 19 February 2020)

Section 4. Authority of lawyer to bind client. — A lawyer can bind a client in a legal engagement only when so authorized through a written agreement.

The lawyer, however, cannot compromise a client's litigation, or receive anything in discharge of a client's claim, without a special power of attorney for such purpose.

NOTE: The Rules of Court thus requires lawyers to secure special authority from their clients when entering into a compromise agreement that dispenses with litigation:

SEC. 23. *Authority of attorneys to bind clients.* – Attorneys have authority to bind their clients in any case by any agreement in relation thereto made in writing and in taking appeals, and in all matters of ordinary judicial procedure. **But they cannot, without special authority, compromise their client's litigation**, or receive anything in discharge of a client's claim but the full amount in cash.

Section 5. Authority of lawyer to appear. — A lawyer is presumed to be properly authorized to represent any cause in which he or she appears, and no written power of attorney is required to authorize him or her to appear in court for the client.

The court, tribunal, or other government agency may, on its own initiative or on motion of either party, on just cause, require a lawyer to produce or prove the authority to appear on behalf of the client.

NOTE: Section 21. *Authority of attorney to appear.*—An attorney is presumed to be properly authorized to represent any cause in which he appears, and no written power of attorney is required to authorize him to appear in court for his client, but the presiding judge may, on motion of either party and on reasonable grounds therefor being shown, require an attorney who assumes the right to appear in a case to produce or prove the authority under which he appears, and to disclose whenever pertinent to any issue, the name of the person who employed him, and may thereupon make such order as justice requires. (*Rule 138, Rules of Court*)

It has been held that as a logical corollary of the presumption that a lawyer is authorized to appear for the party he represents, it is also presumed that the lawyer is authorized by, and has conferred with, his client regarding the case before he files an important responsive pleading for and on behalf of the latter. (*Cebu Stevedoring Company vs. Judge Ramolete*, 17 August 1981)

The presumption in favor of the counsel's authority to appear in behalf of a client is a strong one. A lawyer is not even required to present a written authorization from the client. In fact, the absence of a formal notice of entry of appearance will not invalidate the acts performed by the counsel in his client's name. However, the court, on its own initiative or on motion of the other party require a lawyer to adduce authorization from the client. (*LBP vs. Pamintuan Development Company*, 25 October 2005)

Section 6. Fiduciary duty of a lawyer. — A lawyer shall be mindful of the trust and confidence reposed by the client.

To this end, a lawyer shall not abuse or exploit the relationship with a client.

The relationship between a lawyer and her client is regarded as highly fiduciary. Between the lawyer and the client, it is the lawyer that has the better knowledge of facts, events, and remedies. While it is true that the client chooses which lawyer to engage, he or she usually does so on the basis of reputation. It is only upon actual engagement that the client discovers the level of diligence, competence, and accountability of the counsel that he or she chooses. In some cases, such as this one, the discovery comes too late. Between the lawyer and the client, therefore, it is the lawyer that should bear the full costs of indifference or negligence. (*Ramirez vs. Atty. Margallo*, 03 February 2015)

Section 8. Lawyer's duty to encourage settlement. — A lawyer shall encourage the client to avoid, end or settle a controversy, whether pending or not, in order to reach a settlement or a compromise if the matter can be compromised under the law and will admit of a fair settlement.

To this end, the lawyer shall actively assist the parties and the court, tribunal, or other government agency to effect mediation and/or dispute resolution.

The useful function of a lawyer is not only to conduct litigation but to avoid it whenever possible by advising settlement or withholding suit. He is often called upon less for dramatic forensic exploits than for wise counsel in every phase of life. He should be a mediator for concord and a conciliator for compromise, rather than a virtuoso of technicality in the conduct of litigation. (*Ysasi III vs. NLRC, G.R. No. 104599*)

The Court reminds petitioners' counsel of the duty of lawyers who, as officers of the court, must see to it that the orderly administration of justice must not be unduly impeded. It is the duty of a counsel to advise his client, ordinarily a layman on the intricacies and vagaries of the law, on the merit or lack of merit of his case. If he finds that his client's cause is defenseless, then it is his bounden duty to advise the latter to acquiesce and submit, rather than traverse the incontrovertible. A lawyer must resist the whims and caprices of his client, and temper his client's propensity to litigate. A lawyer's oath to uphold the cause of justice is superior to his duty to his client; its primacy is indisputable. (*Montehermoso vs. Batuto*, 20 December 2020)

Section 9. Duty to call client to rectify fraudulent act. — A lawyer who receives information that a client has, in the course of the representation, perpetrated a fraud in relation to any matter subject of the representation before a court, tribunal, or other government agency, or against any officer thereof, shall promptly call upon the client to rectify the same. Such fraudulent act on the part of the client shall be a ground for the termination by the lawyer of the engagement.

Instead of inaction, a lawyer should have confronted complainant and ask her to rectify her fraudulent representation. If complainant refuses, then he should terminate his relationship with her. (*Dalisay vs. Atty. Mauricio*, 23 January 2006)

Section 10. Responsibility over a subordinate lawyer, paralegal, or employee. — A lawyer or law firm shall be responsible for the mistakes, negligence, and/or acts or omissions of a subordinate lawyer, paralegal, or employee under the lawyer's direct supervision and control, who is acting within the scope of the assigned tasks, that cause damage or injury which brings dishonor to the profession or violates the rule on confidentiality.

However, such liability of the supervising lawyer does not attach upon proof of exercise of diligence of a good parent of a family in the selection and supervision of subordinate lawyer, paralegal, or employee.

Section 11. Responsibility of a supervisory lawyer over a supervised lawyer. — A supervisory lawyer shall co-sign a pleading or other submission to any court, tribunal, or other government agency with a supervised lawyer. A supervisory lawyer shall be responsible for a violation of the CPRA by the supervised lawyer in any of the following instances:

- a. the supervisory lawyer orders or directs the specific conduct or, with knowledge of the specific conduct, ratifies it; or
- b. the supervisory lawyer knows of such conduct at a time when it could be prevented or its consequences avoided or mitigated, but fails to take reasonable remedial action; or
- c. the supervisory lawyer should have known of the conduct so that reasonable remedial action could have been taken at a time when the consequences of the conduct could have been avoided or mitigated.

A supervisory lawyer is a lawyer having direct supervisory authority over another lawyer, including a supervising lawyer under Rule 138-A of the Rules of Court.

Section 12. Responsibilities of a supervised lawyer. — A supervised lawyer acting under the direction of the supervising lawyer, managing partner, or other partners of the firm is nevertheless bound by the CPRA.

Section 13. Conflict of interest. — A lawyer shall not represent conflicting interests except by written informed consent of all concerned given after a full disclosure of the facts.

There is conflict of interest when a lawyer represents inconsistent or opposing interests of two or more persons. The test is whether in behalf of one client it is the lawyer's duty to fight for an issue or claim, but which is his or her duty to oppose for the other client.

Needless to state, a lawyer owes his or her client undivided allegiance. In fact, unlike other common relations, the lawyer's duty of loyalty to the client does not end even after the attorney-client relations are terminated. As such, the Court has incessantly reminded lawyers: "It behooves attorneys, like Caesar's wife, not only to keep inviolate the client's confidence, *but also to avoid the appearance of treachery and double-dealing*. Only thus can litigants be encouraged to entrust their secrets to their attorneys which is of paramount importance in the administration of justice. (*Spouses Niles vs. Atty. Retardo, Jr.*, 21 June 2023)

To be guilty of representing conflicting interests, a counsel-of-record of one party need not also be counsel-of-record of the adverse party. He does not have to publicly hold himself as the counsel of the adverse party, nor make his efforts to advance the adverse party's conflicting interests of record—although these circumstances are the most obvious and satisfactory proof of the charge. It is enough that the counsel of one party had a hand in the preparation of the pleading of the other party, claiming adverse and conflicting interests with that of his original client. To require that he also be counsel-of-record of the adverse party would punish only the most obvious form of deceit and reward, with impunity, the highest form of disloyalty. (*Artezueta v. Atty. Maderazo*, 431 Phil. 135, 143 (2002))

Section 14. Prohibition against conflict-of-interest representation; current clients. — In relation to current clients, the following rules shall be observed:



a. A lawyer shall not enter into a business transaction with a client or knowingly acquire an ownership, possessory, security, or other pecuniary interest adverse to a client unless:

(1) it is shown that the transaction and terms on which the lawyer acquires the interest are fair and reasonable to the client and are fully disclosed and transmitted in writing in a manner that can be reasonably understood by the client;

(2) the client is advised in writing of the desirability of seeking, and is given a reasonable opportunity to seek, the advice of another independent lawyer on the transaction; and

(3) the client gives written informed consent to the essential terms of the transaction and the lawyer's role in the transaction, including whether the lawyer is representing the client in the transaction.

b. A lawyer shall not use confidential information relating to representation of a client without the client's written informed consent, except as permitted or required by law or the CPRA.

c. A lawyer shall not, by undue influence, acquire any substantial gift from a client, including a testamentary gift, or prepare on behalf of a client an instrument giving the lawyer such gift, directly or indirectly.

d. Unless with the written informed consent of the client and subject to the application of the sub judice rule, a lawyer shall not make or negotiate an agreement giving the lawyer literary or media rights to a portrayal or account based in substantial part on information relating to the representation.

e. A lawyer shall not accept compensation for representing a client from any person other than the client, unless:

(1) the client gives written informed consent;

(2) there is no interference with the lawyer's independence or professional judgment or with the lawyer-client relationship; or

(3) the information relating to representation of a client is protected as required by the rule on privileged communication.

f. A lawyer, who represents two or more clients in the same case, in case there is a settlement or plea-bargaining, shall disclose to all the clients the existence and nature of all the claims or pleas involved and the participation of each client in the settlement or plea-bargaining.

g. A lawyer shall avoid testifying in behalf of the client, except:

(1) on formal matters, such as the mailing, authentication or custody of an instrument, and the like; or

(2) on substantial matters, in cases where the testimony is essential to the ends of justice, in which event the lawyer must, during the testimony, entrust the trial of the case to another counsel.

Section 17. Prohibition against conflict-of- interest representation; prospective clients. — In relation to prospective clients, the following rules shall be observed:

a. A lawyer shall, at the earliest opportunity, ascertain the existence of any conflict of interest between a prospective client and current clients, and immediately disclose the same if found to exist.

In case of an objection by either the prospective or current client, the lawyer shall not accept the new engagement.

- b. A lawyer shall maintain the private confidences of a prospective client even if no engagement materializes, and shall not use any such information to further his or her own interest, or the interest of any current client.

Section 18. *Prohibition against conflict-of-interest representation; former clients.* — In relation to former clients, the following rules shall be observed:

- a. A lawyer shall maintain the private confidences of a former client even after the termination of the engagement, except upon the written informed consent of the former client, or as otherwise allowed under the CPRA or other applicable laws or regulations, or when the information has become generally known.
- b. A lawyer shall not use information relating to the former representation, except as the CPRA or applicable laws and regulations would permit or require with respect to a current or prospective client, or when the information has become generally known.
- c. Unless the former client gives written informed consent, a lawyer who has represented such client in a legal matter shall not thereafter represent a prospective client in the same or related legal matter, where the prospective client's interests are materially adverse to the former client's interests.

Section 19. *Corporate lawyers; conflict of interest.* — In relation to organizational clients, a lawyer who represents a corporation or any organization does not, by virtue of such representation, necessarily represent any constituent or affiliated organization, such as a parent or subsidiary.

A lawyer for a corporation or other organization, who is also a member of its board of directors or trustees, shall determine whether the responsibilities of the two roles may conflict. In the event of the latter, the lawyer shall disclose the conflict of interest to all concerned parties.

Section 21. *Lawyers in government service; conflict of interest.* — A lawyer currently serving in the government shall not practice law privately, unless otherwise authorized by the Constitution, the law or applicable Civil Service rules and regulations. If allowed, private practice shall be upon the express authority of the lawyer's superior, for a stated specified purpose or engagement, and only during an approved leave of absence. However, the lawyer shall not represent an interest adverse to the government.

Section 22. *Public Attorney's Office; conflict of interest.* — The Public Attorney's Office is the primary legal aid service office of the government. In the pursuit of its mandate under its charter, the Public Attorney's Office shall ensure ready access to its services by the marginalized sectors of society in a manner that takes into consideration the avoidance of potential conflict of interest situations which will leave these marginalized parties unassisted by counsel.

A conflict of interest of any of the lawyers of the Public Attorney's Office incident to services rendered for the Office shall be imputed only to the said lawyer and the lawyer's direct supervisor. Such conflict of interest shall not disqualify the rest of the lawyers from the Public Attorney's Office from representing the affected client, upon full disclosure to the latter and written informed consent.

Limiting the -conflict-of-interest rule to the handling lawyers seeks to guarantee access to legal representation by the poor without compromising the fiduciary relationship between the lawyer and the client. Verily, the Court adopted Sec. 22, Canon III of the CPRA in the exercise not only of its power to regulate the practice of law, but also of its constitutional prerogative to promulgate rules concerning legal assistance to the underprivileged. It is well to note here, that it is the PAO's principal mandate to provide free legal assistance to indigents. (*In re: REQUEST OF THE PUBLIC ATTORNEY'S OFFICE TO DELETE*

SECTION 22, CANON III OF THE PROPOSED CODE OF PROFESSIONAL RESPONSIBILITY AND ACCOUNTABILITY, A.M. No. 23-05-05-SC July 11, 2023)

Section 35. Limited Legal Services. — Limited Legal Services refer to services for a specific legal incident, with the expectation by the lawyer and the client that the lawyer will not provide continuing legal services in the matter. This includes being appointed as counsel de officio only for arraignment purposes or special appearances to make any court submission, to give advice, to draft legal documents, to provide legal assistance before courts or administrative bodies, and the like.

In all instances, the lawyer shall state that the service being rendered is in the nature of Limited Legal Services.

A lawyer who renders Limited Legal Services shall be entitled to compensation as may be agreed upon or provided by the Rules of Court.

Section 36. Pro bono Limited Legal Services. — A lawyer appointed by the court as counsel de officio shall not refuse to render Limited Legal Services pro bono on the ground of conflict of interest. Instead, the lawyer shall disclose to all affected parties such conflict of interest.

In any case, the lawyer may not refuse to render such pro bono legal services to the person concerned if only to the extent necessary to safeguard the latter's fundamental rights and not to deprive such person of remedies available under the law or rules.

A lawyer currently serving in the government shall not be exempt from pro bono service and may be appointed by any court, tribunal, or other government agency as counsel de officio, unless prohibited by law, or the applicable Civil Service rules and regulations, or when there is a conflict of interest with government.

Section 37. Duty of confidentiality in Limited Legal Services. — A lawyer who provides Limited Legal Services must protect the client's private confidences to the same extent as if engaged under regular terms.

Section 38. Termination of Limited Legal Services. — Unless governed by Canon III, Section 36, a lawyer must cease to provide Limited Legal Services to a client when the lawyer becomes aware that there may be an actual or potential conflict of interest, except with the written informed consent of the client.

In all cases, the Limited Legal Services terminates upon the completion of such services.

Section 39. Limited Legal Services of law student practitioners. — The Limited Legal Services rendered by a law student practitioner under the Clinical Legal Education Program shall be governed by the CPRA.

Section 40. Accountability of legal clinic director and supervising lawyer. — A law student clinic director and supervising lawyer, under Rule 138-A of the Rules of Court shall provide meaningful training to law students. They shall assume responsibility for any work performed by the law student while under their supervision and shall comply with all the laws, rules, and guidelines pertaining to Law Student Practice.

Section 41. Fair and reasonable fees. — A lawyer shall charge only fair and reasonable fees.

Attorney's fees shall be deemed fair and reasonable if determined based on the following factors:

- a. The time spent and the extent of the service rendered or required;
- b. The novelty and difficulty of the issues involved;
- c. The skill or expertise of the lawyer, including the level of study and experience required for the engagement;
- d. The probability of losing other engagements as a result of acceptance of the case;

- e. The customary charges for similar services and the recommended schedule of fees, which the IBP chapter shall provide;
- f. The quantitative or qualitative value of the client's interest in the engagement, or the benefits resulting to the client from the service;
- g. The contingency or certainty of compensation;
- h. The character of the engagement, whether limited, seasonal, or otherwise; and
- i. Other analogous factors.

SEC. 24, Rule 138, Rules of Court:

Compensation of attorney's; agreement as to fees. An attorney shall be entitled to have and recover from his client no more than a reasonable compensation for his services, with a view to the importance of the subject matter of the controversy, the extent of the services rendered, and the professional standing of the attorney. No court shall be bound by the opinion of attorneys as expert witnesses as to the proper compensation, but may disregard such testimony and base its conclusion on its own professional knowledge. A written contract for services shall control the amount to be paid therefor unless found by the court to be unconscionable or unreasonable.

An attorney's retaining lien is fully recognized if the presence of the following elements concur: (1) *lawyer-client relationship*; (2) *lawful possession of the client's funds, documents and papers*; and (3) *unsatisfied claim for attorney's fees*. (*Miranda vs. Atty. Carpio, 26 September 2011*)

CONTINGENT FEES:

A contract for contingent fee, where sanctioned by law, should be reasonable under all the circumstances of the case including the risk and uncertainty of the compensation, but should always be subject to the supervision of a court, as to its reasonableness.

Indubitably entwined with the lawyer's duty to charge only reasonable fees is the power of this Court to reduce the amount of attorney's fees if the same is excessive and unconscionable. (*Roxas vs. De Zuzuarregui, 31 Janury 2006*)

Section 47. Enforcement of attorney's lien. — In case of non-payment of attorney's fees, a lawyer may resort to the enforcement of the attorney's lien under Canon III, Section 54, by filing a Notice of Enforcement of Attorney's Lien with the court, tribunal, or other government agency of origin where the action or proceeding the lawyer rendered service for is pending, without prejudice to other remedies under the law or the Rules of Court. The Notice shall be accompanied by proof of the services rendered, and served on the client. The court, tribunal, or other government agency, after hearing, shall determine the lawyer's entitlement to the claimed fees.

The enforcement of an attorney's lien shall be treated as an independent claim and shall in no instance delay the resolution of the main case. The resolution of the lawyer's claim may be included in the main judgment or in a separate partial judgment. In the case of a partial judgment, the same shall be subject of appeal.

An appeal in the main case shall not stay the execution of the lawyer's lien. In the execution of the judgment in the main case, the court shall give due consideration to the pending claim of the lawyer.

If the claim for attorney's lien arises after a decision has been rendered by the court, tribunal, or other government agency of origin on the action or proceeding, the claim for the enforcement of the lien shall be by an independent action.

Section 49. Accounting during engagement. — A lawyer, during the existence of the lawyer- client relationship, shall account for and prepare an inventory of any fund or property belonging to the client, whether received from the latter or from a third person, immediately upon such receipt.

When funds are entrusted to a lawyer by a client for a specific purpose, the lawyer shall use such funds only for the client's declared purpose. Any unused amount of the entrusted funds shall be promptly returned to the client upon accomplishment of the stated purpose or the client's demand.

Section 56. Accounting and turn over upon termination of engagement. — A lawyer who is discharged from or terminates the engagement shall, subject to an attorney's lien, immediately render a full account of and turn over all documents, evidence, funds, and properties belonging to the client.

The lawyer shall cooperate with the chosen successor in the orderly transfer of the legal matter, including all information necessary for the efficient handling of the client's representation.

A lawyer shall have a lien upon the funds, documents, and papers of the client which have lawfully come into his or her possession and may retain the same until the fair and reasonable fees and disbursements have been paid, and may apply such funds to the satisfaction thereof.

After a careful review, the Court finds respondent's exercise of his retaining lien by withholding the return of complainant's passport to be *improper* in the case. It appears that respondent's client is *not* actually the complainant but the Agency itself, considering that it was Al Shomali, the Agency's owner, that endorsed the subject tasks to him in the first place. In addition, respondent himself stated that he scheduled a meeting with Al Shomali, not complainant, for the return of the latter's passport.

Lawyers are reminded to avoid any controversy with a client concerning fees for legal services and to resort to judicial action solely to prevent imposition, injustice, or fraud. In case of non-payment of attorney's fees, a lawyer may resort to the proper enforcement of the attorney's lien under Section 54, Canon III of the CPRA by filing a notice of enforcement of attorney's lien with the court, tribunal, or other government agency of origin where the action or proceeding the lawyer rendered service for is pending, without prejudice to other remedies under the law or the Rules of Court. (*Shumali vs. Atty. Agustin*, 29 November 2023)

Section 52. Prohibition on lending and borrowing; exceptions. — During the existence of the lawyer-client relationship, a lawyer shall not lend money to a client, except under urgent and justifiable circumstances. Advances for professional fees and necessary expenses in a legal matter the lawyer is handling for a client shall not be covered by this rule.

Neither shall a lawyer borrow money from a client during the existence of the lawyer-client relationship, unless the client's interests are fully protected by the nature of the case, or by independent advice. This rule does not apply to standard commercial transactions for products or services that the client offers to the public in general, or where the lawyer and the client have an existing or prior business relationship, or where there is a contract between the lawyer and the client.

This act alone shows respondent lawyer's blatant disregard of Rule 16.04. Complainant's acquiescence to the "pawning" of her jewelry becomes immaterial considering that the CPR is clear in that lawyers are proscribed from borrowing money or property from clients, unless the latter's interests are fully protected by the nature of the case or by independent advice. Here, respondent lawyer's act of borrowing does not constitute an exception. Respondent lawyer used his client's jewelry in order to obtain, and then appropriate for himself, the proceeds from the pledge. In so doing, he had abused the trust and confidence reposed upon him by his client. That he might have intended to subsequently pay his client the value of the jewelry is inconsequential. What deserves detestation was the very act of his exercising influence and persuasion over his client in order to gain undue benefits from the latter's property. The Court has repeatedly emphasized that the relationship between a lawyer and his client is one imbued with trust and confidence. And as true as any natural tendency goes, this "trust and confidence" is prone to abuse. **The rule against borrowing of money by a lawyer from his client is intended to prevent the lawyer from taking advantage of his influence over his client.** The rule presumes that the client is disadvantaged by the lawyer's ability to use all the legal maneuverings to renege on his obligation. **Suffice it to say, the borrowing of money or property from a client outside the limits laid down in the CPR is an unethical act that warrants sanction.** (*Yu v. Atty. Dela Cruz*, A.C. No. 1091)

Section 53. Termination of engagement by the lawyer. — A lawyer shall terminate the lawyer-client engagement only for good cause and upon written notice, in any of the following cases:\

- a. When the client pursues an illegal or immoral course of conduct in connection with the engagement;
- b. When the client insists that the lawyer pursue conduct that is violative of these Canons and rules;
- c. When the lawyer's inability to work with a co-counsel will not promote the best interest of the client;
- d. When the moral predisposition or the mental or physical condition of the lawyer renders it difficult to carry out the engagement effectively;
- e. When the client deliberately fails to pay the fees for the lawyer's services, fails to comply with the retainer agreement, or can no longer be found despite diligent efforts;
- f. When the lawyer is elected or appointed to public office;
- g. Other similar cases.

Section 54. Termination of engagement by the client. — The lawyer-client engagement may be terminated by the client at any time upon loss of trust and confidence.

The termination of the engagement shall not relieve the client from full payment of all professional fees due to the lawyer. If the engagement has been reduced to writing, the lawyer shall be entitled to recover from the client the full compensation stipulated, unless found by the court, tribunal or other government agency to be unconscionable or unreasonable under Canon III, Section 41 of the CPRA.

For the payment of the compensation, the lawyer shall have a charging lien upon all judgments for the payment of money, and executions issued in pursuance of such judgment, rendered in the case where the lawyer's services had been retained by the client.

Section 55. Termination of engagement upon death. — The death of the lawyer or client shall terminate the lawyer-client relationship. The death of such lawyer shall not extinguish the lawyer-client engagement between the law firm and the client handled by such law firm.

Section 56. Accounting and turn over upon termination of engagement. — A lawyer who is discharged from or terminates the engagement shall, subject to an attorney's lien, immediately render a full account of and turn over all documents, evidence, funds, and properties belonging to the client.

The lawyer shall cooperate with the chosen successor in the orderly transfer of the legal matter, including all information necessary for the efficient handling of the client's representation.

A lawyer shall have a lien upon the funds, documents, and papers of the client which have lawfully come into his or her possession and may retain the same until the fair and reasonable fees and disbursements have been paid, and may apply such funds to the satisfaction thereof.

Moreover, upon complainant's demand, respondent refused to return the amount of ₱244,865.00 he received as legal fees as well as all pertinent documents entrusted to him by complainant, including the original copy of OCT No. M-3772. Respondent did not even offer any justifiable reason for such continued refusal. It bears stressing that the relationship between a lawyer and his client is highly fiduciary and prescribes on a lawyer a great fidelity and good faith. The highly fiduciary nature of this relationship imposes upon the lawyer the duty to account for the money or property collected or received for or from his client. Thus, a lawyer's failure to return upon demand the funds held by him on behalf of his client, as in this case, gives rise to the presumption that he has appropriated the same for his own use in violation of the trust reposed in him by his client. This act is a gross violation of general morality, as well as of professional ethics. (*Jacobia vs. Atty. Panganiban, A.C. No. 12627*)

CANON IV

COMPETENCE AND DILIGENCE

A lawyer professionally handling a client's cause shall, to the best of his or her ability, observe competence, diligence, commitment, and skill consistent with the fiduciary nature of the lawyer-client relationship, regardless of the nature of the legal matter or issues involved, and whether for a fee or pro bono.

Section 1. Competent, efficient and conscientious service. — A lawyer shall provide legal service that is competent, efficient, and conscientious. A lawyer shall be thorough in research, preparation, and application of the legal knowledge and skills necessary for an engagement.

A lawyer's duty of competence and diligence includes not merely reviewing the cases entrusted to the counsel's care or giving sound legal advice, but also consists of properly representing the client before any court or tribunal, attending scheduled hearings or conferences, preparing and filing the required pleadings, prosecuting the handled cases with reasonable dispatch, and urging their termination without waiting for the client or the court to prod him or her to do so. (*Nicolas vs. Atty. Laki*, 09 February 2021)

Section 2. Undertaking legal services; collaborating counsel. — A lawyer shall only undertake legal services he or she can deliver.

With the prior written consent of the client, a lawyer may secure the services of a collaborating counsel.

Section 3. Diligence and punctuality. — A lawyer shall diligently and seasonably act on any legal matter entrusted by a client.

A lawyer shall be punctual in all appearances, submissions of pleadings and documents before any court, tribunal or other government agency, and all matters professionally referred by the client, including meetings and other commitments.

NOTE: While the negligence of counsel generally binds the client and final judgments are immutable, these rules admit of exceptions when counsel's gross negligence deprives the accused of due process or results in the outright deprivation of liberty. In this case, the Court found that Atty. Gutierrez's failure to file an appeal, coupled with her repeated misrepresentations that an appeal had been filed, constituted gross and reckless negligence that effectively denied Conche his right to effective assistance of counsel and his statutory right to appeal. (*Conche vs. People*, 01 March 2023, J. Gaerlan)

Section 4. Diligence in all undertakings. — A lawyer shall observe diligence in all professional undertakings, and shall not cause or occasion delay in any legal matter before any court, tribunal, or other agency.

A lawyer shall appear for trial adequately familiar with the law, the facts of the case, and the evidence to be presented. A lawyer shall also be ready with the object and documentary evidence, as well as the judicial affidavits of the witnesses, when required by the rules or the court.

Section 5. Prompt and objective assessment of the merits. — A lawyer shall, after reasonable inquiry, promptly give an objective assessment of the merits and probable results of the client's case.

A lawyer shall explain the viable options to the client to enable an informed decision regarding the matter.

Section 6. Duty to update the client. — A lawyer shall regularly inform the client of the status and the result of the matter undertaken, and any action in connection thereto, and shall respond within a reasonable time to the client's request for information.

Section 7. Extension of time to file. — A lawyer shall avoid asking for an extension of time to file any pleading, motion, or other court submission, except when allowed by the Rules of Court or for good cause.

When an extension is obtained, the lawyer shall not let the period lapse without submitting the pleading, motion, or other court submission, except upon the client's decision not to pursue the case any further or for other justifiable cause.

Section 9. Practice of law concurrent with another profession. — A lawyer who is engaged in another profession or occupation concurrently with the practice of law shall expressly provide in the pertinent contract the nature of the services the lawyer is engaged to perform.

The practice of another profession or occupation shall not jeopardize such lawyer's competence, integrity, probity, and independence in rendering legal services.

Section 10. Non-legal activities. — A lawyer who is engaged in business or other non-legal profession shall likewise observe the ethical duties and responsibilities of a lawyer under the CPRA.

A lawyer owes his entire devotion to the interest of the client, warm zeal in the maintenance and defense of his client's rights, and the exertion of his utmost learning and ability to the end that nothing be taken or withheld from his client, save by the rules of law, legally applied. A lawyer who performs his duty with diligence and candor not only protects the interest of his client, he also serves the ends of justice, does honor to the bar, and helps maintain the respect of the community to the legal profession. (*Baldado vs. Atty. Mejica, 11 March 2013*)

The Court suspended the erring lawyer from the practice of law for six months due to his failure to update his client on the case, return the documents entrusted to him upon request, and protect his client's interest with utmost diligence. Guided by the foregoing precedent, the Court now imposes the same penalty upon Atty. Lorica for the above-discussed violations of the Lawyer's Oath and the CPR. (*Castro vs. Atty. Malde, Jr., A.C. No. 12221, June 10, 2019*)

CANON V **EQUALITY**

Every lawyer shall adhere to the principle of equality and hold firmly the belief that every person, regardless of nationality or ethnicity, color, sexual orientation or gender identity, religion, disability, age, marital status, social or economic status, and other like circumstances, has the fundamental right to equal treatment and representation.

As such, the lawyer shall accord equal respect, attention, dedication and zeal in advancing the client's cause, regardless of personal opinion, religious or political beliefs pertaining on the personal circumstances of the client, except for justifiable reasons.

When may a lawyer decline employment?

1. A lawyer should decline any employment that would involve any conflict of interest. (*Ylaya vs. Gacott, A.C. No. 6475, 30 January 2013*)
2. Lawyers may decline employment and refuse to accept representation, if they are not in a position to carry it out effectively or competently. (*Padilla vs. Atty. Samson, A.C. No. 10253, 22 August 2017*)
3. Nullification of a contract which he prepared. (*Bautista vs. Barrios, A.C. No. 258, 21 December 1963*)
4. Any other causes that would tend to violate any of the rules of the legal profession.

Section 1. *Non-discrimination.* — A lawyer shall not decline to represent a person solely on account of the latter's nationality or ethnicity, sexual orientation or gender identity, religion, disability, age, marital status, social or economic status, political beliefs, or such lawyer's or the public's opinion regarding the guilt of said person, except for justifiable reasons.

Section 2. *Treatment of vulnerable persons.* — In dealing with a client who belongs to a vulnerable sector, a lawyer shall be mindful and sensitive of, and consider the client's special circumstances, as well as the applicable laws and rules.

The lawyer shall observe a higher standard of service suited to the particular needs of the vulnerable person and shall assert such person's right to meaningful access to justice.

A vulnerable person is a person who is at a higher risk of harm than others, and shall include children, the elderly, the homeless, persons with disability, persons deprived of liberty, human rights victims, victims of domestic violence, victims of armed conflict, those who are socio-economically disadvantaged, those who belong to racial or ethnic minorities, or those with debilitating physical or mental conditions.

Section 3. *Indigent person.* — A lawyer shall not refuse the representation of an indigent person, except if:

- a. the lawyer is not in a position to carry out the work effectively or competently due to a justifiable cause;
- b. the lawyer will be placed in a conflict-of-interest situation; or
- c. the lawyer is related to the potential adverse party, within the sixth degree of consanguinity or affinity, or to the adverse counsel, within the fourth degree.

An indigent is any person who has no money or property sufficient for food, shelter and other basic necessities for oneself and one's family.

Section 4. *Standard of service.* — A lawyer shall observe the same standard of service for all clients, regardless of remuneration, except for the higher standard required for representation of vulnerable persons.

CANON VI **ACCOUNTABILITY**

By taking the Lawyer's Oath, a lawyer becomes a guardian of the law and an administrator of justice. As such, the lawyer shall observe the highest degree of morality, adhere to rigid standards of mental fitness, and faithfully comply with the rules of the legal profession.

Failure to honor this covenant makes the lawyer unfit to continue in the practice of law and accountable to society, the courts, the legal profession, and the client.

Section 1. *Nature of disciplinary proceedings against lawyers.* — Disciplinary proceedings against lawyers shall be confidential in character and summary in nature.

Nonetheless, the final order of the Supreme Court shall be published like its decisions in other cases.

Section 2. *How instituted.* — Proceedings for the disbarment, suspension, or discipline of lawyers may be commenced by the Supreme Court on its own initiative, or upon the filing of a verified complaint by the Board of Governors of the Integrated Bar of the Philippines (IBP), or by any person, before the Supreme Court or the IBP. However, a verified complaint against a government lawyer which seeks to discipline such lawyer as a member of the Bar shall only be filed in the Supreme Court.

A verified complaint filed with the Supreme Court may be referred to the IBP for investigation, report and recommendation, except when filed directly by the IBP, in which case, the verified complaint shall be referred to the Office of the Bar Confidant or such fact-finding body as may be designated.

Complaints for disbarment, suspension and discipline filed against incumbent Justices of the Court of Appeals, Sandiganbayan, Court of Tax Appeals and judges of lower courts, or against lawyers in the judicial service, whether they are charged singly or jointly with other respondents, and whether such complaint deals with acts unrelated to the discharge of their official functions, shall be forwarded by the IBP to the Supreme Court for appropriate disposition under Rule 140, as amended.

Section 6. Complaint against a government lawyer. — When a complaint is filed against a government lawyer, the Investigating Commissioner shall determine, within five days from assignment by raffle, whether the concerned agency, the Ombudsman, or the Supreme Court has jurisdiction. If the allegations in the complaint touch upon the lawyer's continuing obligations under the CPRA or if the allegations, assuming them to be true, make the lawyer unfit to practice the profession, then the Investigating Commissioner shall proceed with the case. Otherwise, the Investigating Commissioner shall recommend that the complaint be dismissed.

RULES IN THE FILING AND HANDLING OF COMPLAINTS AGAINST GOVERNMENT LAWYERS, TO SERVE AS GUIDELINES FOR BOTH THE BENCH AND THE BAR:

1. All complaints against and which seek to discipline government lawyers in their respective capacities as members of the Bar must be filed directly before this Court. Conversely, complaints which do not seek to discipline them as members of the Bar shall be dismissed for lack of jurisdiction and referred to the Ombudsman or concerned government agency for appropriate action.

2. In connection with paragraph 1, upon filing, the Court must determine whether the concerned agency, the Ombudsman, or the Court, has jurisdiction over the complaint against the government lawyer. In making such determination, the following must be considered: did the allegations of malfeasance touch upon the errant lawyer's continuing obligations under the CPR and/or the Lawyer's Oath? To put it more simply, the primordial question to be asked in making this determination is this: do the allegations in the complaint, assuming them to be true, make the lawyer unfit to practice the profession? (*Guevarra-Castil vs. Atty. Trinidad*, 12 July 2022)

Section 31. Preventive suspension. — After receipt of respondent's answer or lapse of the period therefor, the Supreme Court, on its own initiative, or upon the recommendation of the IBP Board of Governors, the Office of the Bar Confidant, or the fact-finding body referred to in Section 30, may suspend a lawyer from the practice of law during the pendency of the investigation for a period not exceeding one hundred eighty (180) calendar days or until such suspension is lifted by the Supreme Court, in order to prevent interference with or obstruction of the investigation, tampering, concealment or destruction of evidence, intimidating or exerting undue influence on any witness.

Section 32. Quantum and burden of proof. — In administrative disciplinary cases, the complainant has the burden of proof to establish with substantial evidence the allegations against the respondent. Substantial evidence is that amount of relevant evidence which a reasonable mind might accept as adequate to justify a conclusion.

The burden of proof in disbarment and suspension proceedings always rests on the complainant. The Court exercises its disciplinary power only if the complainant establishes the complaint by clear preponderant evidence that warrants the imposition of the harsh penalty. As a rule, an attorney enjoys the legal presumption that he is innocent of the charges made against him until the contrary is proved. An attorney is further presumed as an officer of the Court to have performed his duties in accordance with his oath. (*Lanuza v. Atty. Magsalin III, et al.*, 749 Phil. 104, 112 (2014))

SERIOUS OFFENSES (Sec. 33, Canon VI)	LESS SERIOUS OFFENSES (Sec.34, Canon VI)	LIGHT OFFENSES (Sec. 35, Canon VI)
a) Gross misconduct, or any inexcusable, shameful or flagrant unlawful conduct; b) Serious dishonesty, fraud, or deceit, including falsification of documents and making untruthful statements; c) Bribery or corruption; d) Gross negligence in the performance of duty, or conduct that is reckless and inexcusable, which results in the client being deprived of his or her day in court; e) Conviction of a crime involving moral turpitude; f) Grossly immoral conduct, or an act that is so corrupt or false as to constitute a criminal act, or so immoral as to be reprehensible to a high degree; g) Misappropriating a client's funds or properties; h) Gross ignorance of the law or procedure, or the disregard of basic rules and settled jurisprudence, when either is attended by bad faith, malice or corrupt motive; i) Grossly undignified conduct prejudicial to the administration of justice; j) Sexual abuse; k) Gender-based sexual harassment or discrimination; l) Open defiance to any order of the court, tribunal, or other government agency; m) Threat of physical or economic harm, amounting to a crime, directed at a fellow lawyer, the latter's client or principal, a witness, or any official or employee of a court, tribunal, or other government agency; n) Willful and deliberate forum shopping, and forum shopping through gross negligence; o) Intentional violation of the rule on privileged communication; p) Violation of the notarial rules, except reportorial requirements, when attended by bad faith; q) Intentional violation of the conflict of interest rules; r) Influence-peddling or using one's relationships to obtain a favorable action on, or outcome in, any pending matter or proceeding, directly or indirectly, with or without monetary consideration, from any	a) Simple misconduct, or such misconduct without the manifest elements of corruption, clear intent to violate the law or flagrant disregard of established rules; b) Simple negligence in the performance of duty, or such negligence which does not result in depriving the client of his or her day in court; c) Violation of Supreme Court rules and issuances in relation to Bar Matters and administrative disciplinary proceedings, including willful and deliberate disobedience of the orders of the Supreme Court and the IBP; d) Simple dishonesty; e) Other violations of the conflict of interest rules; f) Prohibited borrowing of money from a client; g) Prohibited lending of money; h) Other unlawful threats; i) Instituting frivolous or baseless actions, on the basis of a final decision or order dismissing such action for being frivolous or baseless; j) Violation of the sub judice rule; k) Deliberate failure or refusal to pay just debts; l) Termination of legal services absent good cause and written notice; m) Use of intemperate or offensive language before any court, tribunal, or other government agency; n) Unjustifiable failure or refusal to render an accounting of the funds or properties of a client; o) Unauthorized division of fees with a non- lawyer; and p) Other violations of reportorial requirements.	a) Violation of IBP rules and issuances governing membership in the IBP; b) Use of vulgar or offensive language in personal dealings; c) Fraternizing with the officials or employees of a court, tribunal, or other government agency where the respondent has a pending case or cases, to such a degree and frequency as would give the appearance of power or influence over them, or which tends to create an impression of impropriety; d) Filing of frivolous motions for inhibition; e) Failure to promptly call upon client to rectify a fraudulent act; or f) Other similar or analogous infractions of the CPRA.

officer of a court, tribunal or other government agency; s) Unlawful discrimination under Canon V; and t) Sale, distribution, possession and/or use of illegal drugs or substances.		
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Section 36. *Assisting in the commission of an offense.* — Any lawyer who shall knowingly assist another lawyer in the commission of any serious, less serious, or light offense punished by the CPRA may also be held liable.

Section 37. *Sanctions.* —

SERIOUS OFFENSES	LESS SERIOUS OFFENSES	LIGHT OFFENSES
1) Disbarment; 2) Suspension from the practice of law for a period exceeding six (6) months; 3) Revocation of notarial commission and disqualification as notary public for not less than two (2) years; or 4) A fine exceeding Php100,000.00.	1) Suspension from the practice of law for a period within the range of one (1) month to six (6) months, or revocation of notarial commission and disqualification as notary public for less than two (2) years; 2) A fine within the range of P35,000.00 to P100,000;	1) A fine within the range of P1,000.00 to P35,000.00; 2) Censure; or 3) Reprimand. In addition to the above sanctions in paragraph (c), the respondent may also be required to do community service or service in the IBP legal aid program.

NOTE: *In all instances, when the offense involves money or property owed, which is intrinsically linked to the lawyer-client relationship, the respondent shall be ordered to return the same.*

NOTE: *For a lawyer to be imposed the extreme penalty of disbarment for immorality, the conduct complained of must not only be immoral, but must be grossly immoral. Grossly immoral conduct is one that is so corrupt as to constitute a criminal act, or so unprincipled as to be reprehensible to a high degree or committed under such scandalous or revolting circumstances as to shock the common sense of decency. (Narag v. Narag, A.C. No. 3405)*

Section 43. *Immediately executory; furnished copies.* — The decision or resolution pronouncing the respondent’s administrative liability is immediately executory. The copies of the decision or resolution shall be furnished to the Office of the Bar Confidant, the Integrated Bar of the Philippines National Office and local chapter to which the respondent belongs, and the Office of the Court Administrator for circulation to all the courts.

Section 45. *Sworn statement after service of suspension.* — Upon the expiration of the period of suspension from the practice of law, the lawyer shall file a Sworn Statement with the Supreme Court, through the Office of the Bar Confidant, to show that the petitioner, during the period of suspension:

- a. has not appeared before any court, tribunal or other government agency, whether in respect of current, former or prospective clients;
- b. has not signed or filed any pleading or other court submission;
- c. has duly informed his or her clients, law firm, law school where the lawyer is teaching, legal clinic, or other legal service organization of which he or she is a member, regarding the suspension; and
- d. has not otherwise performed any act, directly or indirectly, that amounts to the practice of law.

The Sworn Statement shall state the date of the lawyer's receipt of the order, decision or resolution imposing the penalty of suspension, as well as a list of the lawyer's engagements affected by the suspension, indicating the relevant court, tribunal or other government agency, if any.

Copies of the Sworn Statement shall be furnished to the Local Chapter of the IBP, to the Executive Judge of the courts where the suspended lawyer has pending cases handled by him or her, and/or where he or she has appeared as counsel.

Section 46. Resumption of practice of law. – The Sworn Statement shall be considered as proof of the suspended lawyer's compliance with the order of suspension. Such lawyer shall be allowed to resume the practice of law upon the filing of the Sworn Statement before the Supreme Court.

However, any false statement in the Sworn Statement shall be a ground for a complaint for disbarment.

Within five (5) days from the filing of the Sworn Statement and the Office of the Bar Confidant determines that there is a false statement stated therein, it shall refer the same to the Court for its immediate action.

GUIDELINES ON LIFTING OF THE PENALTY OF SUSPENSION IMPOSED AGAINST MEMBERS OF THE BAR:

1. After a finding that the respondent lawyer must be suspended from the practice of law, the Court shall render a decision or resolution imposing the appropriate penalty;
2. The order of suspension shall be immediately executory upon receipt thereof by the respondent lawyer;
3. Every order of suspension imposed against a member of the Bar shall be furnished to the: (1) Office of the Bar Confidant to be appended to respondent's personal record as an attorney; (2) Integrated Bar of the Philippines for its information and guidance; and (3) Office of the Court Administrator for circulation to all courts in the country;
4. Upon the expiration of the period of suspension, the respondent lawyer shall file a Sworn Statement with the Court, through the Office of the Bar Confidant, stating therein that he or she has desisted from the practice of law, has not appeared in any court during the period of his or her suspension and has complied with all other directives of the Court relative to the order of suspension;
5. Copies of such Sworn Statement shall be furnished to the Local Chapter of the Integrated Bar of the Philippines, the Executive Judge of the courts, or any quasi-judicial agencies where the respondent lawyer has pending cases handled by him or her, and/or where he or she has appeared as counsel;
6. The order of suspension shall be automatically lifted upon submission by the respondent lawyer of such Sworn Statement that he or she has completed the service of suspension;
7. While respondent lawyers are neither prohibited nor discouraged to attach supporting certifications from their local IBP chapters, and from courts and quasi-judicial agencies where they practice, their requests to resume the practice of law will not be held in abeyance on account of their non-submission; and,
8. Any finding or report contrary to the statements made by the respondent lawyer under oath shall be a ground for the imposition of a more severe punishment, or even disbarment, as may be warranted.
(*IN RE: ATTY. SEVERO BRILLANTES, 10 JANUARY 2023*)

Section 47. Reinstatement in the Roll of Attorneys. – A lawyer who has been disbarred may file a verified petition for judicial clemency after five years from the receipt of the order, decision, resolution of disbarment.

Section 48. *Petition for judicial clemency.* — The verified petition for judicial clemency shall allege the following:

- a. that the verified petition was filed after five years from the receipt of the order, decision, or resolution of disbarment;
- b. that the disbarred lawyer has fully complied with the terms and conditions of all prior disciplinary orders, including orders for restitution;
- c. that he or she recognizes the wrongfulness and seriousness of the misconduct for which he or she was disbarred by showing positive acts evidencing reformation;
- d. that he or she has reconciled, or attempted in good faith to reconcile, with the wronged private offended party in the disbarment case, or if the same is not possible, an explanation as to why such attempt at reconciliation could not be made.

Where there is no private offended party, the plea for clemency must contain a public apology; and

- e. notwithstanding the conduct for which the disbarred lawyer was disciplined, he or she has the requisite good moral character and competence.

Any of the following allegations may also be made in support of the petition:

- (a) that he or she still has productive years that can be put to good use if given a chance; or
- (b) there is a showing of promise (such as intellectual aptitude, learning or legal acumen or contribution to legal scholarship and the development of the legal system or administrative and other relevant skills), as well as potential for public service.

Section 49. *Action on the petition for judicial clemency; prima facie merit.* — Upon receipt of the petition, the Supreme Court shall conduct a preliminary evaluation and determine if the same has prima facie merit based on the criteria.

If the petition has prima facie merit, the Supreme Court shall refer the petition to the Office of the Bar Confidant or any fact-finding body the Court so designates for investigation, report and recommendation.

If the petition fails to show any prima facie merit, it shall be denied outright.

Section 50. *Investigation by the Office of the Bar Confidant or other fact-finding body.* — The Office of the Bar Confidant or any other fact-finding body designated shall conduct and terminate the investigation and submit to the Supreme Court its report and recommendation within ninety (90) calendar days from receipt of the referral.

Section 51. *Decision on the petition for judicial clemency; quantum of evidence.* — The Supreme Court shall decide the petition on the basis of clear and convincing evidence.

CLEMENCY GUIDELINES FOR REINSTATEMENT TO THE BAR ARE AS FOLLOWS:

1. A lawyer who has been disbarred cannot file a petition for judicial clemency within a period of five (5) years from the effective date of his or her disbarment, unless for the most compelling reasons based on extraordinary circumstances, a shorter period is warranted.

For petitions already filed at the time of this Resolution, the Court may dispense with the five (5)-year minimum requirement and instead, in the interest of fairness, proceed with a preliminary evaluation of the petition in order to determine its *prima facie* merit.

2. Upon the lapse of the said five (5)-year period, or earlier if so permitted by the Court, a disbarred lawyer becomes eligible to file a verified petition for judicial clemency.

The petition, together with its supporting evidence appended thereto, must show on its face that the following criteria have been met:

- (a) The petitioner has fully complied with the terms and conditions of all prior disciplinary orders, including orders for restitution, as well as the five (5)-year period to file, unless he or she seeks an earlier filing for the most compelling reasons based on extraordinary circumstances;
 - (b) The petitioner recognizes the wrongfulness and seriousness of the misconduct for which he or she was disbarred. For petitions already filed at the time of this Resolution, it is required that the petitioner show that he or she genuinely attempted in good faith to reconcile with the wronged private offended party in the case for which he or she was disbarred (if any), or if such is not possible, the petitioner must explain with sufficient reasons as to why such attempt at reconciliation could not be made; and
 - (c) Notwithstanding the conduct for which the disbarred lawyer was disciplined, the disbarred lawyer has the requisite integrity and competence to practice law.
3. Upon the filing of the verified petition for clemency, together with its attachments, the Court shall first conduct a preliminary evaluation and determine if the same has *prima facie* merit based on the criteria above-stated.
4. If the petition has *prima facie* merit based on the above-criteria, the Court shall refer the petition to the OBC (or any other fact-finding body the Court so designates) in order to verify the details and the authenticity of the statements made and the evidence attached to the clemency petition.

If the petition fails to show any *prima facie* merit, it should be denied.

5. After its investigation, the OBC (or such other fact-finding body designated by the Court) shall submit its fact-finding report to the Court, which shall ultimately resolve the clemency petition based on the facts established in the said report. The threshold of evidence to be applied is clear and convincing evidence since it is incumbent upon the petitioner to hurdle the seriousness of his or her established past administrative liability/ies, the gravity of which had warranted the supreme penalty of disbarment.

6. Unless otherwise resolved by the Court sitting En Banc, these guidelines and procedure shall apply to pending petitions for judicial clemency, as well as to those filed after the promulgation of this Resolution.
(IN RE: PETITION FOR JUDICIAL CLEMENCY OF ROMULO L. RICAFORT, 02 MARCH 2021)

NOTARIAL PRACTICE

NOTARY PUBLIC

“Notary Public” and “Notary” refer to any person commissioned to perform official acts under these Rules.
(Sec.9, A.M. No. 02-8-13-SC)

It should have emphatically stressed that notarization is not an empty, meaningless, routine act. It is invested with substantive public interest, such that only those who are qualified or authorized may act as notaries public. The protection of that interest necessarily requires that those not qualified or authorized to act must be prevented from imposing upon the public, the courts, and the administrative offices in general. It must be underscored that the notarization by a notary public converts a private document into a public document making that document admissible in evidence without further proof of the authenticity thereof. A notarial document is by law entitled to full faith and credit upon its face. For this reason, notaries public must observe with utmost care the basic requirements in the performance of their duties.
(Nunga vs. Viray, A.C. No. 4758)

QUALIFICATIONS OF NOTARY PUBLIC

1. A citizen of the Philippines;
2. Over 21 years of age;
3. A resident in the PH for at least one (1) year and maintains a regular place of work or business in the city or province where the commission is to be issued;
4. A member of the Philippine Bar in good standing with clearances from the Office of the Bar Confidant of the Supreme Court and the Integrated Bar of the Philippines; and
5. Has not been convicted in the first instance of any crime involving moral turpitude. (*second par., Sec. 1, Rule III, 2004, Rules on Notarial Practice, A.M. No. 02-8-13-SC*)

JURISDICTION AND TERM

A person commissioned as notary public may perform notarial acts in any place within the territorial jurisdiction of the commissioning court for a period of two (2) years commencing the first day of January of the year in which the commissioning is made, unless earlier revoked or the notary public has resigned under these Rules and the Rules of Court. (*Sec. 3, Rule III, A.M. No. 02-8-13-SC*)

POWERS

A notary public is empowered to perform the following notarial acts:

- (1) acknowledgments;
- (2) oaths and affirmations;
- (3) jurats;
- (4) signature witnesses;
- (5) copy certifications; and
- (6) any other act authorized by these Rules.

PROHIBITIONS

1. A notary public shall not perform a notarial act outside his regular place of work or business; provided, however, that on certain exceptional occasions or situations, a notarial act may be performed at the request of the parties in the following sites located within his territorial jurisdiction:

- (1) public offices, convention halls, and similar places where oaths of office may be administered;
- (2) public function areas in hotels and similar places for the signing of instruments or documents requiring notarization;
- (3) hospitals and other medical institutions where a party to an instrument or document is confined for treatment; and
- (4) any place where a party to an instrument or document requiring notarization is under detention.

2. A person shall not perform a notarial act if the person involved as signatory to the instrument or document -

- (1) is not in the notary's presence personally at the time of the notarization; and
- (2) is not personally known to the notary public or otherwise identified by the notary public through competent evidence of identity as defined by these Rules.

NOTARIAL REGISTER

A notary public shall keep, maintain, protect and provide for lawful inspection as provided in these Rules, a chronological official notarial register of notarial acts consisting of a permanently bound book with numbered pages.

A notary public shall keep only one active notarial register at any given time.

Failure to make the proper entry or entries in the notary public's notarial register concerning his notarial acts shall give ground for the revocation of his commission or imposition of appropriate administrative

sanctions.¹ Such failure also violates his duty under the Code to uphold and obey the laws of the land and to promote respect for law and legal processes. (*Roabuenafe vs. Atty. Lirazan*, A.C. No. 9361, 20 March 2019)

COMPETENT EVIDENCE OF IDENTITY

Proceeding from Section 12, Rule II of the Notarial Rules, the "competent evidence of identity" required under the facts of this case refers to the identification of an individual based on **at least one current identification document issued by an official agency bearing the photograph and signature of the individual**. Here, however, the purported affiants of the SPAs and the real estate mortgage only presented their community tax certificates. This should have caught the attention of Atty. Bijis. **The Court has long since disregarded a community tax certificate or a cedula as a valid and competent evidence of identity because it does not bear the photograph and signature of the individual**, which the Notarial Rules deem as the more appropriate and competent means by which notaries public can ascertain the person's identity. (*Ong vs. Atty. Bijis*, A.C. No. 13054, 23 November 2021)

2020 INTERIM RULES ON REMOTE NOTARIZATION OF PAPER DOCUMENTS

A.M. 20-07-04-SC, 14 July 2020

- **Limited to Handwritten Signatures or Marks; Execution of Wills Excluded**

The Rules are limited to the notarization of paper documents and instruments with handwritten signatures or marks through the use of videoconferencing facilities. The Rules are not applicable to documents with electronic signatures.

The Rules do not apply to the execution of notarial wills. (*Sec.2, Rule 1*)

- **Only for Localities Under Community Quarantine** (*Sec.3, Rule 1*)

- **All Parties Must be Located within the Territorial Jurisdiction of the Notary Public During the Videoconference** (*Sec.3, Rule 1*)

JUDICIAL ETHICS

SOURCES

1. New Code of Judicial Conduct
2. Bangalore Principles of Judicial Conduct
3. 1989 Code of Judicial Conduct
4. Rules of Court

THE NEW CODE OF JUDICIAL CONDUCT FOR THE PHILIPPINE JUDICIARY

A.M. No. 03-05-01-SC

CANON 1 **INDEPENDENCE**

JUDICIAL INDEPENDENCE IS A PRE-REQUISITE TO THE RULE OF LAW AND A FUNDAMENTAL GUARANTEE OF A FAIR TRIAL. A JUDGE SHALL THEREFORE UPHOLD AND EXEMPLIFY JUDICIAL INDEPENDENCE IN BOTH ITS INDIVIDUAL AND INSTITUTIONAL ASPECTS.

2 ASPECTS OF INDEPENDENCE

Individual Independence -Focuses on each particular judge and seeks to ensure their ability to decide cases with autonomy within the constraints of the law

Institutional Independence -Focuses on the independence of the judiciary as a branch of government and protects judges

CANON 2 **INTEGRITY**

INTEGRITY IS ESSENTIAL NOT ONLY TO THE PROPER DISCHARGE OF THE JUDICIAL OFFICE, BUT ALSO TO THE PERSONAL DEMEANOR OF JUDGES

The Supreme Court held that the people's confidence in the Judicial System is founded not only on the magnitude of legal knowledge, and the diligence of the members of the bench, but also on the highest standard of integrity and moral uprightness that they are expected to possess, It is therefore paramount that a judge's personal behavior both in the performance of his duties and his daily life, be free from the appearance of impropriety as to be beyond reproach. (*Dela Cruz vs. Judge Bersamira, 24 July 2000*)

The Supreme Court emphasized that Judges must be an embodiment of competence, integrity and independence. The exacting standards of conduct demanded from judges are designed to promote public confidence in the integrity and impartiality of the judiciary because people's confidence in the judicial system is not only on the magnitude of legal knowledge and diligence of the members of the bench, but also on the highest standard of integrity and moral uprightness they are expected to possess. When the judge becomes the transgressor of any law which he is sworn to apply he places his office in disrepute, encourages disrespect to the law and impairs public confidence in the integrity and impartiality of the judiciary itself. (*Tan vs. Judge Rosete, 24 July 2000*)

CANON 3 **IMPARTIALITY**

IMPARTIALITY IS ESSENTIAL TO THE PROPER DISCHARGE OF THE JUDICIAL OFFICE. IT APPLIES NOT ONLY TO THE DECISION ITSELF BUT ALSO TO THE PROCESS BY WHICH DECISION IS MADE

Judges are not only required to be impartial, but also to appear to be so, for appearance is an essential manifestation of reality. Hence, not only must a judge render a just decision, he is also duty bound to render it in a manner completely free from suspicion as to its fairness and its integrity. (*Sison-Baris vs. Rubia, 10 June 2014*)

Bias and prejudice cannot be presumed, in light especially of a judge's sacred obligation under his oath of office to administer justice without respect to the person, and to give equal right to the poor and rich. There should be clear and convincing evidence to prove the charge; mere suspicion of partiality is not enough. (*Lorenzana vs. Austria*, 02 April 2014)

CANON 4 **PROPRIETY**

PROPRIETY AND THE APPEARANCE OF PROPRIETY ARE ESSENTIAL TO THE PERFORMANCE OF ALL ACTIVITIES OF THE JUDGE.

Respondent paraded his mistress in full view of his colleagues, court personnel, and even the general public by bringing her to fiestas and other public places, without any regard to consequences that may arise as a result thereof. Worse, respondent even had the audacity to use his chambers as a haven for their morally depraved acts. Respondent failed to adhere to the exacting standards of morality and decency which every member of the judiciary is expected to observe. It is not only a violation of the moral standards expected of the members and employees of the judiciary but is also a desecration of the sanctity of the institution of marriage which the Court abhors. (*Mah-Arevalo vs. Mantua*, 19 November 2014)

The Court is *not* unaware that Judge Atillo, Jr.'s act of posting the subject pictures on his Facebook account would no doubt seem harmless and inoffensive if it was done by an ordinary member of the public. "As the visible personification of law and justice, however, **judges are held to higher standards of conduct and thus must accordingly comport themselves.**" By doing so, Judge Atillo, Jr. likewise failed to adhere to the standard of propriety required of judges and court personnel under OCA Circular No. 173-2017, which mandates all members of the Judiciary who participate in social media to be *cautious* and *circumspect* in posting photographs, liking posts, and making comments in public on social networking sites like Facebook. Indeed, Judge Atillo, Jr. should have known better than to post *highly personal content* on his Facebook account that was viewable not only by his family and close friends, but also, by his "regular followers" or, in other words, members of the general public. (*OCA vs Hon. Atillo*, A.M. No. RTJ-21-018 (Formerly A.M. No. 20-07-109-RTC))

NOTE: The prohibition in Article 1491 (5) applies only to the sale or assignment of the property which is the subject of litigation to the persons disqualified therein. WE have already ruled that "... for the prohibition to operate, the sale or assignment of the property must take place *during the pendency* of the litigation involving the property" (*Macariola vs. Hon. Asuncion*, A.M. No. 133-J, 31 May 1982)

NOTE: Teaching shall be allowed for not more than ten (10) hours a week. On regular working days (Monday through Friday), teaching shall not be conducted earlier than 5:30 p.m. (A.M. No. 13-05-05-SC, OCA Circular No. 218-2019)

CANON 5 **EQUALITY**

ENSURING EQUALITY OF TREATMENT TO ALL BEFORE THE COURTS IS ESSENTIAL TO THE DUE PERFORMANCE OF THE JUDICIAL OFFICE

A judge must consistently be temperate in words and in actions. Respondent Judge Belen's insulting statements, tending to project complainant's ignorance of the laws and procedure, coming from his inconsiderate belief that the latter mishandled the cause of his client is obviously and clearly insensitive, distasteful, and inexcusable. Such abuse of power and authority could only invite disrespect from counsels and from the public. Patience is one virtue that members of the bench should practice at all times, and courtesy to everyone is always called for. (*Correa vs. Judge Belen*, 06 August 2010)

CANON 6 **COMPETENCE AND DILIGENCE**

COMPETENCE AND DILIGENCE ARE PREREQUISITES TO THE DUE PERFORMANCE OF JUDICIAL OFFICE.

Judges are to be reminded that it is the height of incompetence to dispense cases callously and in utter disregard of procedural rules. Whether the resort to shortcuts is borne out of ignorance or convenience is immaterial. Judges took an oath to dispense their duties with competence and integrity; to fall short would be a disservice not only to the entire judicial system, but more importantly, to the public. (*Chua Keng Sin vs. Mangente, 11 February 2015*)

DISQUALIFICATION AND INHIBITION FOR JUDGES

I. MANDATORY DISQUALIFICATION

1. When he, or his wife, or child is pecuniarily interested as heir, legatee, creditor or otherwise;
2. When he is related to either party within the sixth (6th) degree of consanguinity or affinity or to counsel within the fourth (4th) civil degree;
3. When he has been an executor, guardian, administrator, trustee, or counsel;
4. When he has presided in an inferior court where his ruling or decision is subject to review. (Rule 137, ROC)

NOTE: A judge who is subject to the mandatory disqualification may continue handling the case provided that ALL parties have given written consent to the same.

II. VOLUNTARY INHIBITION

A judge may, in the exercise of his sound discretion, disqualify himself, for just and valid reasons other than those mentioned. (*Rule 137, Sec. 1, ROC*)

NOTE: The rule on voluntary inhibition of judges is that the decision on whether to inhibit is left to the sound discretion of conscience of the judge based on his rational and logical assessment of the circumstances prevailing in the case brought before him. It is a subjective test, the result of which will not be disturbed by the reviewing tribunal absence of any manifest finding of arbitrariness and whimsicality. (*Kilosbayan vs. Janolo, 27 July 2010*)

DECISION TO INHIBIT NOT CONCLUSIVE and his competency may be determined on application for mandamus to compel him to act. (*Query on Executive Judge Estrada, 26 October 1987*)

This Court will not require a judge to inhibit himself in the absence of clear and convincing evidence to overcome the presumption that he will dispense justice in accordance with law and evidence. This Court will also not allow itself to become an instrument to paper over fatal errors done by the petitioner and the prosecution in the lower court." (*Chavez vs. Marcos, 27 June 2018*)

DISCIPLINE OF JUSTICES, JUDGES, AND COURT PERSONNEL

A.M. NO. 21-08-09-SC

MANNER:

1. Motu Proprio Against those who are not Members of the Supreme Court.
2. Verified Complaint supported by Affidavits of persons who have personal knowledge of the facts alleged therein, or by anonymous Complaint supported by public records of indubitable integrity, or where the material averments may easily be verified and may be substantiated and established by other competent evidence.

NOTE: Any complaint, whether verified or anonymous will now be lodged with the Judicial Integrity Board (JIB).

3. By Complaint Against Members of the Supreme Court.

NOTE: Complaints involving graft and corruption and violations of ethical standards, including anonymous complaints, against Members of the Supreme Court shall be filed directly with the Supreme Court and shall be consequently referred to its Committee on Ethics and Ethical Standards. The said committee shall be responsible for preliminarily investigating and submitting its findings and recommendations to the Supreme Court en banc, in accordance with its own internal rules, which may adopt any of the procedures herein set forth. ([Section 1](#))

It is well-settled that disciplinary proceedings and criminal actions against judges are not complementary or suppletory to, nor a substitute for, these judicial remedies, whether ordinary or extraordinary. For, obviously, if subsequent developments prove the judge's challenged act to be correct, there would be no occasion to proceed against him at all. Besides, to hold a judge administratively accountable for every erroneous ruling or decision he renders, assuming he has erred, would be nothing short of harassment and would make his position doubly unbearable. To hold otherwise would be to render judicial office untenable, for no one called upon to try the facts or interpret the law in the process of administering justice can be infallible in his judgment. It is only where the error is tainted with bad faith, fraud, malice, or dishonesty that administrative sanctions may be imposed against the erring judge. ([Tallado et. Al. vs. Hon. Racoma, 23 August 2022](#))

EFFECT OF DEATH, RETIREMENT, AND SEPARATION FROM SERVICE TO THE PROCEEDINGS:

(1) Circumstances Already Existing Prior to the Institution of the Proceedings. — Disciplinary proceedings may not be instituted against a Member, official, employee, or personnel of the Judiciary who has already died, retired, or otherwise separated from service. If such proceedings have been instituted notwithstanding the foregoing circumstances, the administrative case against said Member, official, employee, or personnel of the Judiciary shall be dismissed.

(2) Circumstances Supervening Only during the Pendency of the Proceedings. — However, once disciplinary proceedings have already been instituted, the respondent's supervening retirement or separation from service shall not preclude or affect the continuation of the same, provided, that, the supervening death of the respondent during the pendency of such proceedings shall result in the dismissal of the administrative case against him or her. ([Section 2](#))

CLASSIFICATION OF CHARGES:

SERIOUS CHARGES	LESS SERIOUS CHARGES	LIGHT OFFENSES
a) Gross misconduct constituting violations of the Code of Judicial Conduct or of the Code of Conduct for Court Personnel; b) Bribery, direct and indirect, and violations of the Anti-Graft and Corrupt Practices Act (Republic Act No. 3019); c) Serious dishonesty; d) Gross neglect of duty in the performance or non-performance of official functions; e) Knowingly rendering an unjust judgment or order; f) Commission of a crime involving moral turpitude; g) Falsification of official documents, including making untruthful statements in the certificates of service; h) Borrowing money or property from lawyers and/or litigants in a case pending before the court; i) Gross immorality; j) Gross ignorance of the law or procedure; k) Partisan political activities; l) Grave abuse of authority, and/or prejudicial conduct that gravely besmirches or taints the reputation of the service; m) Sexual harassment; n) Gross insubordination; and o) Possession and/or use of illegal drugs or substances.	a) Simple misconduct constituting violations of the Code of Judicial Conduct or of the Code of Conduct for Court Personnel; b) Simple neglect of duty in the performance or non-performance of official functions; c) Habitual absenteeism and/or tardiness; d) Unauthorized practice of law; e) Violation of Supreme Court rules, directives and circulars that establish an internal policy, rule of procedure, or protocol; f) Receiving additional or double compensation unless specifically authorized by law; and g) Simple dishonesty.	a) Vulgar and unbecoming conduct; b) Gambling in public; c) Fraternizing with lawyers and litigants with pending case/cases in his or her court; d) Undue delay in the submission of monthly reports; and e) Willful failure to pay judgment debts or taxes due to the government.

SANCTIONS:

SERIOUS CHARGES	LESS SERIOUS CHARGES	LIGHT OFFENSES
a) Dismissal from service, forfeiture of all or part of the benefits as the Supreme Court may determine, and disqualification from reinstatement or appointment to any public office, including government-owned or -controlled corporations. Provided, however, that the forfeiture of benefits shall in no case include accrued leave credits; b) Suspension from office without salary and other benefits for more than six (6) months but not exceeding one (1) year; or c) A fine of more than P100,000.00 but not exceeding P200,000.00.	a) Suspension from office without salary and other benefits for not less than one (1) month nor more than six (6) months; or b) A fine of more than P35,000.00 but not exceeding P100,000.00.	a) A fine of not less than P1,000.00 but not exceeding P35,000.00; b) Censure; or c) Reprimand.

JUDICIAL CLEMENCY is the Court's extraordinary act that does not transgress existing laws and override the choice of those who have been wronged. It should, as much as possible, be based on established facts and accepted normative ethical values.

This Court has always stated that being a member of the profession, more so those who don judicial robes, is a privilege burdened with conditions. The cumbersome process and fixing of ethical standards help ensure that justice is administered effectively and equitably. Preservation of the public's trust in the judicial institution is indeed, a primary consideration in both admission and discipline of members of the profession and the bench. Necessarily, if a lawyer or judge commits a professional misstep and had been penalized thereon, pleas of reconsideration or mitigation must be supported with compelling proof of remorse, rehabilitation and potential. Judicial clemency is not a privilege or a right that can be availed of at any time. Courts can only accord it upon showing that it is merited. (*ANONYMOUS AGAINST HON. JOSE S. JACINTO, JR., 09 August 2022*)